

How to Accept an Offer to Settle

Instructions

An **Acceptance of Offer to Settle (Form F23.05A)** is a document that you can fill out if you want to accept the terms of an Offer to Settle (or, where permitted, certain terms of the offer).

If you wish to accept the Offer to Settle (or part of it) and there is a time limit in the Offer to Settle, you must send your Acceptance of Offer to Settle form to the other person before the time limit expires. If you do not send anything, the Offer to Settle will be deemed rejected.

Completing Your Acceptance of Offer to Settle

You can fill out this form by hand or you can download and fill out this form electronically at www.court.nl.ca/supreme/family/forms.html (If you fill out the form electronically, you must still print the form and give a copy to the other person).

To complete an Acceptance of Offer to Settle, fill out the sections of the form that apply to you and remember to sign and date the last page. If you need more space to fill out any section of this Acceptance of Offer to Settle, attach an extra page and indicate which section is continued on the extra page.

Delivering Your Acceptance of Offer to Settle

You will need to give a copy of your completed and signed Acceptance of Offer to Settle to the other person. You do not have to formally serve the Acceptance of Offer to Settle and you do not have to provide proof of service to the Court.

Remember to make a copy of the Acceptance of Offer to Settle for yourself.

After You Have Completed and Delivered Your Acceptance of Offer to Settle

DO NOT file your Acceptance of Offer to Settle with the Court.

If you and the other person come to an agreement on some or all of the issues, you can draft either a agreement or a consent order. You can draft a consent order using the Consent Order template form. You can get the form from any Supreme Court location or online:

www.court.nl.ca/supreme/family/forms.html. File the agreement or consent order with the Court.

More Information

Questions? Go to <https://www.court.nl.ca/supreme/family-division/> or contact a Court near you:

Corner Brook: (709) 637-2227

Grand Falls-Windsor: (709) 292-4260

Gander: (709) 256-1115

Happy Valley-Goose Bay: (709) 896-7892

Grand Bank: (709) 832-1720

St. John's: (709) 729-2258

--- It is highly recommended that you get advice from a lawyer ---

If you need help finding or getting a lawyer, you can contact:

Public Legal Information Association of NL (PLIAN): www.publiclegalinfo.com or 1 (888) 660-7788

Legal Aid: www.legalaid.nl.ca or 1(800) 563-9911

--- REMOVE THIS PAGE BEFORE SENDING THE ACCEPTANCE ---

What to Do When Your Offer to Settle Is Accepted

Instructions

Your Offer to Settle has been accepted (in whole or in part).

**DO NOT file any forms related to the Offer to Settle or Acceptance with the Court.
DO NOT disclose any information about the Offer to Settle or Acceptance to the Court.**

Read the attached **Acceptance of Offer to Settle (Form F23.05A)** carefully. You may find that some of the terms in your Offer to Settle were accepted, while others were not accepted. You may have to do some further negotiation with the other person if this is the case.

If you and the other person come to an agreement on some or all of the issues, you can draft either an agreement or a consent order. You can draft a consent order using the Consent Order template form. You can get the form at any Supreme Court location or online: www.court.nl.ca/supreme/family/forms.html. File the agreement or consent order with the Court.

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--- It is highly recommended that you get advice from a lawyer ---

If you need help finding or getting a lawyer, you can contact:

Public Legal Information Association of NL (PLIAN): www.publiclegalinfo.com or (709) 722-2643

Legal Aid: www.legalaid.nl.ca or 1(800) 563-9911

Form F23.05A: Acceptance of Offer to Settle (Family Law)



**In the Supreme Court of
Newfoundland and Labrador
(General/Family)**

FOR COURT USE ONLY

COURT FILE NO: _____

CENTRAL DIVORCE REGISTRY NO: _____

Filed at _____, Newfoundland and
Labrador, this _____ day of _____, 20____.

Registry Clerk of the Supreme Court of Newfoundland and Labrador

BETWEEN: _____ APPLICANT
(Print full name)

AND: _____ RESPONDENT
(Print full name)

AND: _____
(Print full name)

☐ NOT APPLICABLE
☐ SECOND APPLICANT
☐ SECOND RESPONDENT

I, _____ the ☐ Applicant ☐ Respondent ☐ Other:
(Print Name)

accept the formal Offer to Settle, dated _____ in relation to the following:
(Date: month/day/year)

If you wish to accept the offering party's Offer to Settle in its ENTIRETY, check the following section:

☐ **All terms of the Offer to Settle**

If you wish to accept ONE OR MORE of the terms of the Offer to Settle (and the Offer to Settle has specified that the offer to may be accepted in part), indicate which terms you accept below:

☐ **Parenting (Decision-making and Parenting)**

List the term(s) of the Offer to Settle that you accept:

☐ **Contact Order/ Third Party Time with Child**

List the term(s) of the Offer to Settle that you accept:

☐ **Child Support**

List the term(s) of the Offer to Settle that you accept:

☐ **Spousal, Partner, Parental, or Dependent Support**

List the term(s) of the Offer to Settle that you accept:

☐ **Division of (Matrimonial or Common Law) Property**

List the term(s) of the Offer to Settle that you accept:

☐ **Other Offers**

List the term(s) of the Offer to Settle that you accept:

DATED at _____, this _____ day of _____, 20____.	
_____ <i>Signature</i>	_____ <i>Signature of Lawyer (if any)</i>

**--- THIS ACCEPTANCE SHALL NOT BE FILED WITH OR DISCLOSED TO THE COURT UNTIL
ALL ISSUES IN THE OFFER (other than costs) HAVE BEEN DETERMINED ---**